



CHAPTER iv.

An Act to confirm a Provisional Order under A.D. 1922.
the Private Legislation Procedure (Scotland) —
Act 1899 relating to Edinburgh Corporation.
[15th December 1922.]

WHEREAS His Majesty's Secretary for Scotland has
after inquiry held before Commissioners made the
Provisional Order set forth in the schedule hereunto
annexed under the provisions of the Private Legislation 62 & 63
Procedure (Scotland) Act 1899 and it is requisite that the Vict. c. 47.
said Order should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present
Parliament assembled and by the authority of the same
as follows :—

1. The Provisional Order contained in the schedule Confirmation
hereunto annexed shall be and the same is hereby tion of
confirmed. Order in
schedule.

2. This Act may be cited as the Edinburgh Short title.
Corporation Order Confirmation Act 1922 (Session 2).

A.D. 1922.

SCHEDULE.

EDINBURGH CORPORATION.

Provisional Order to authorise the Corporation of the City and Royal Burgh of Edinburgh to make and maintain tramways to construct works to acquire lands for improvements and other purposes to reconstitute the superannuation scheme of the Corporation to borrow money to amend the Edinburgh Municipal and Police Acts and for other purposes.

WHEREAS the lord provost magistrates and council of the city and royal burgh of Edinburgh (hereinafter referred to as "the Corporation") are vested with the municipal government of the said city and royal burgh (hereinafter referred to as "the city") and are the local authority therein for police public health road sanitary tramway electricity gas water and other purposes :

And whereas the Corporation are the owners of and work the existing tramways within the city and are authorised to construct maintain and work additional tramways within the city :

And whereas it is expedient and would be in the public interest that the Corporation should be authorised to construct work and maintain the tramways hereinafter in this Order described :

And whereas the Corporation are authorised to adapt and convert their tramways to electric traction and to borrow money for the purposes of the adaptation and conversion to electric traction of certain sections of the said tramways :

And whereas it is expedient that the Corporation should be authorised to borrow and raise such further money as may be required to enable the Corporation to carry out the adaptation and conversion to electric traction of the remaining sections of the said tramways :

And whereas it is expedient that the Corporation should be authorised to make construct maintain and use the works and improvements hereinafter in this

Order mentioned and to acquire lands for the purposes thereof : A D. 1922.

And whereas it is expedient to acquire additional lands for the purposes of the gas undertaking of the Corporation :

And whereas it is expedient that the Corporation should be authorised to borrow and raise further money for the purposes of their water undertaking :

And whereas the following estimates have been prepared by the Corporation for the purposes hereinafter mentioned (that is to say) :—

(1) For and in connection with the tramways by this Order authorised - - - - -	£ 57,908
(2) For the adaptation and conversion to electric traction of the remaining sections of the Corporation tramways - - - - -	110,644
(3) For tramway equipment cars rolling stock and depôts - - -	314,367
(4) For and in connection with the works by this Order authorised - -	6,399
(5) For the purchase of lands - - -	9,500

And whereas the said works contained in the said estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas the Corporation by the Edinburgh Corporation (Superannuation) Order 1906 established a superannuation scheme under the provisions contained in the said Order which provisions were amended by the Edinburgh Corporation Act 1913 and the said scheme is now in operation :

And whereas under the Edinburgh and Leith Corporations Gas Order 1908 a superannuation fund was established in respect of the gas undertaking :

And whereas under the Edinburgh Boundaries Extension and Tramways Act 1920 the said superannuation fund of the gas undertaking was with the said undertaking transferred to the Corporation and further provisions were made as therein mentioned with respect to the superannuation scheme of the Corporation and the Corporation were required within three years from the commencement of that Act to promote a Provisional Order

[Ch. iv.] *Edinburgh Corporation Order* [13. GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922. — for amending the superannuation scheme subject to the conditions therein prescribed :

And whereas by the said last-mentioned Act it was also provided that the said superannuation fund of the gas undertaking should during such time as the Corporation might determine and until statutory authority should be obtained for merging that fund in the Corporation superannuation fund be maintained by the Corporation as a separate superannuation fund for the gas undertaking of the Corporation :

And whereas it is expedient that the superannuation scheme of the Corporation should be reconstituted and should be made to apply to all employees in the service of the Corporation and the superannuation scheme of the gas undertaking should be merged in the Corporation superannuation scheme as reconstituted under this Order all as hereinafter in this Order provided :

And whereas it is expedient to authorise the Corporation to suspend the annual provision required to be made for repayment of moneys borrowed and to be borrowed for and in connection with the new electricity generating station of the Corporation at Westbank Portobello and the subsidiary works connected therewith and to authorise the Corporation to borrow such sum as may be required for the purpose of paying out of capital interest on moneys borrowed or to be borrowed during the period of such suspension all as hereinafter in this Order provided :

And whereas it is expedient that the Corporation should be authorised to invest any reserve depreciation renewal superannuation or any other Corporation funds in trust securities including stock or securities of the Corporation :

And whereas it is expedient that for the purposes of this Order the Corporation should be authorised to levy rates and assessments and to borrow money :

And whereas it is expedient that further powers should be conferred on the Corporation as in this Order provided :

And whereas plans and sections describing the lines and situations and levels of the tramways and other works proposed to be authorised by this Order and the lands houses and other properties which will or may

be taken and acquired for the purposes thereof respectively and of the lands houses and other property which may be taken for the other purposes of this Order and also a book of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the principal sheriff clerk of the county of Midlothian and also with the principal sheriff clerk of the county of the city of Edinburgh and the same are hereinafter respectively referred to as the deposited plans sections and book of reference : A.D. 1922.

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited as the Edinburgh Corporation Order 1922 and the Edinburgh Municipal and Police Acts 1879 to 1921 and this Order may be cited as the Edinburgh Municipal and Police Acts 1879 to 1922. Short title
and citation

PART I.

PRELIMINARY.

2. This Order is divided into Parts as follows :—

Division of
Order into
Parts.

Part I.—Preliminary.

Part II.—Tramways Improvements &c.

Part III.—Superannuation.

Part IV.—Finance.

Part V.—Miscellaneous.

3. This Order shall (except as otherwise hereinafter provided) commence and have effect on and from the date of the passing of the Act confirming the same which date is hereinafter referred to as “the commencement of this Order.” Commence-
ment of
Order.

4. In this Order unless there be something in the subject or context repugnant to such construction the Interpreta-
tion.

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922. — following expressions shall have the meanings hereinafter respectively assigned to them (that is to say) :—

“ The city ” means the city and royal burgh of Edinburgh as extended and defined by the Act of 1920;

“ The Corporation ” means the lord provost magistrates and council of the city;

“ The Edinburgh Municipal and Police Acts ” means the Edinburgh Municipal and Police Acts 1879 to 1921 the Corporation Stock Act and this Order;

“ The Act of 1879 ” means the Edinburgh Municipal and Police Act 1879;

“ The Act of 1893 ” means the Edinburgh Improvement and Municipal and Police (Amendment) Act 1893;

“ Corporation Stock Act ” means the Edinburgh Corporation Stock Act 1894 as amended by the Edinburgh Improvement and Tramways Act 1896 the Edinburgh Corporation Act 1906 and the Edinburgh Corporation Order 1921;

“ The Act of 1913 ” means the Edinburgh Corporation Act 1913;

“ The Order of 1916 ” means the Edinburgh Corporation Order 1916;

“ The Order of 1919 ” means the Edinburgh Corporation Order 1919;

“ The Act of 1920 ” means the Edinburgh Boundaries Extension and Tramways Act 1920;

“ The Order of 1921 ” means the Edinburgh Corporation Order 1921;

“ Corporation Tramways Acts ” means the Edinburgh Corporation Tramways Act 1893 and all other Acts or Orders relating to the Corporation tramways;

“ Gas Acts ” means the Edinburgh and Leith Corporations Gas Acts 1888 to 1919 the Edinburgh and Leith Corporations Gas (Standard of Calorific Power) Order 1920 the Act of 1920 and the Order of 1921;

“ Gas undertaking ” means the gas undertaking of the Corporation as defined in the Gas Acts;

[13 GEO. 5.] *Edinburgh Corporation Order* [Ch. iv.]
Confirmation Act, 1922. (Session 2.)

“ Water Acts ” means the Edinburgh and District Water Acts 1869 to 1914 the Act of 1920 and the Order of 1921; A.D. 1922,
—

“ Water undertaking ” means the water undertaking of the Corporation as defined in the Water Acts;

“ Water of Leith Acts ” means the Water of Leith Purification and Sewerage Acts 1889 to 1908 the Act of 1920 and the Order of 1921;

“ New tramways ” means the tramways authorised by this Order;

“ Existing tramways ” means the tramways within the city owned by the Corporation;

“ Authorised tramways ” means the tramways and tramroads already authorised within the city and not yet constructed;

“ Tramways ” or “ Corporation tramways ” means the existing tramways the authorised tramways and the new tramways:

And the words and expressions defined in the Edinburgh Municipal and Police Acts 1879 to 1921 shall if and when used in this Order and when not inconsistent with the above definitions or with any of the provisions of this Order respectively have the same meanings as in the said Edinburgh Municipal and Police Acts.

5. Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Part II. (Construction of tramways) and Part III. (General provisions) of the Tramways Act 1870 are incorporated with this Order except where the sections so incorporated are inconsistent with or are varied by the Corporation Tramways Acts and this Order. Certain provisions of Tramways Act 1870 incorporated.

6. The Lands Clauses Acts are subject to the provisions of this Order incorporated with and shall form part of this Order. Incorporation of Lands Clauses Acts.

PART II.

TRAMWAYS IMPROVEMENTS &C.

7. Subject to the provisions of this Order the Corporation may construct reconstruct make form lay down work use and maintain the new tramways hereinafter Construction of new tramways.

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922. described in the lines and according to the levels shown on the deposited plans and sections with all proper rails plates works and conveniences connected therewith and may take up remove alter appropriate and use any part or parts of the existing tramways which may interfere with or be rendered unnecessary by the construction of the new tramways or some of them :

Provided that nothing in this Order shall authorise any interference with electric lines and works of any undertakers under the Electricity (Supply) Acts 1882 to 1922 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

The new tramways herein authorised are the following :—

Tramway No. 4 (double line) 6 furlongs 6·66 chains or thereabouts in length wholly situate in the city of Edinburgh and city parish of Edinburgh commencing by a junction with the Corporation's existing tramway in London Road at or opposite to a point ten yards or thereabouts westwards from the west side of Easter Road thence passing along London Road thence passing northwards into and along Easter Road and Duke Street and terminating by a junction with the Corporation's existing tramway at a point twenty-one yards or thereabouts westwards from the east side of Lochend Road;

Tramway No. 5 (double line) 1·44 chains or thereabouts in length wholly situate in the city of Edinburgh and city parish of Edinburgh commencing by a junction with the Corporation's existing tramway in London Road at or opposite to a point thirteen yards or thereabouts eastwards from the east side of Easter Road thence passing northwards into Easter Road and there terminating by a junction with Tramway No. 4 at a point eight yards or thereabouts northwards from the north side of London Road;

Tramway No. 6 (double line) 4·54 chains or thereabouts in length wholly situate in the city of Edinburgh and city parish of Edinburgh com-

men- cing by a junction with Tramway No. 4 in Easter Road at a point seven yards or thereabouts south-westwards from the south side of Duke Street Leith passing thence northwards into and along Duke Street and there terminating by a junction with the Corporation's existing tramway at a point opposite to the west side of Duncan Place Leith;

A.D. 1922.

Tramway No. 7 (double and single lines) 1 furlong 1·55 chains or thereabouts in length of which 1·64 chains or thereabouts are double line and 9·91 chains or thereabouts are single line wholly situate in the city of Edinburgh and city parish of Edinburgh commencing by a junction with the Corporation's existing tramway in Gorgie Road at or opposite to a point nine yards or thereabouts east from the east side of Wheatfield Road passing into and along Wheatfield Road and there terminating at a point sixty-four yards or thereabouts north of the north side of Wheatfield Place.

8. Notwithstanding anything contained in this Order or shown on the deposited plans the Corporation shall not construct so much of Tramway No. 7 as is situate between a point fifty-four yards or thereabouts north of the north side of Wheatfield Place and the point of termination of the said tramway.

Provision as to Tramway No. 7.

9. The new tramways shall be completed within seven years from the commencement of this Order and on the expiration of that period the powers by this Order granted to the Corporation for executing the same shall cease except as to so much thereof as shall then be completed.

Period for completion of new tramways.

10. Subject to the provisions of this Order the new tramways and the works connected therewith by this Order authorised to be constructed shall for all purposes of rates tolls and charges and for all other purposes whatsoever be part of the Corporation tramways.

New tramways to be part of Corporation tramways.

11. Subject to the provisions of this Order the sections of the Corporation Tramways Acts mentioned in the First Schedule to this Order shall so far as the same are respectively applicable extend and apply mutatis mutandis to the new tramways.

Application of sections of Corporation Tramways Acts.

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

.D. 1922.
—
New works.

12. Subject to the provisions of this Order and to the powers of deviation hereinafter mentioned the Corporation may in the lines and situation and upon the lands in that behalf delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections make construct maintain and use the works hereinafter mentioned or some of them or some part or parts thereof together with all necessary and proper works and conveniences connected therewith or incidental thereto respectively (that is to say):—

Work No. 1 A public way or path wholly within the city of Edinburgh and city parish of Edinburgh (Work No. 1) commencing at a point forty-eight yards or thereabouts east from the north end of Kaimes Road passing thence northwards along the western boundary of and within the Corstorphine Golf Course to the east end of Cairnmuir Road thence passing eastwards along or towards the northern boundary of and within the said Corstorphine Golf Course and continuing thence south-eastwards through the enclosures 195 on the $\frac{1}{2500}$ Ordnance survey map (edition 1914) and terminating at a point on the road leading from Ravelston Dykes to "Rest and be Thankful" six hundred and fifty-three yards or thereabouts west from the point of junction of the said road with Ravelston Dykes and the stopping up of the existing public way or path between the point of commencement of Work No. 1 above described and the point on the said existing public way or path seven hundred and forty-three yards or thereabouts east from the said point of commencement;

Work No. 2 The removal of the weir or dam on the Water of Leith wholly within the city of Edinburgh and the city parish of Edinburgh extending across the river between two points fifty-six yards or thereabouts distant (measuring across the river) and one hundred and four yards and one hundred and forty-one yards or thereabouts respectively north-eastwards from the east side of the old bridge at Coltbridge and an improvement wholly within the said city and parish of the river bed

(Work No. 2) the said work commencing at a point in the channel of the river at the east side of the old bridge at Coltbridge and terminating at a point in the said channel twenty-seven yards or thereabouts eastwards from the east parapet wall of the viaduct carrying the Caledonian Railway (Leith and Granton Branch Railway) over the said Water of Leith; A.D. 1922.

Work No. 3. The removal of the weir or dam in the Water of Leith wholly within the city of Edinburgh and the city parish of Edinburgh extending across the river or south channel of the river and situate on the southern side of enclosure 405 on the $\frac{1}{2500}$ Ordnance survey map (edition 1914) and an improvement wholly within the said city and parish of the river bed or south channel (Work No. 3) commencing at a point in the centre of the main channel of the Water of Leith seventy-five yards or thereabouts northwards from the point where the Murray Burn joins the Water of Leith thence in an easterly and northerly direction down or along the south channel of the said Water of Leith and terminating at a point in the centre of the said main channel one hundred and twelve yards or thereabouts from the point of commencement.

13. In the execution of the said works or any of them described in this Part of this Order the Corporation may deviate laterally to any extent within the limits of deviation shown on the deposited plans applicable thereto and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding three feet. Power to deviate new works.

14. If the works described in this Part of this Order and shown on the deposited plans are not completed within seven years from the commencement of this Order then on the expiration of that period the powers hereby granted for the execution of the same shall cease except as to so much thereof as is then completed. Period for completion of works.

15. Sections 20 (Magistrates and council may take down buildings and lay out lands and sell or let those not required) 21 (Power to make subsidiary works &c.) 22 (Alterations of sewers and gas and water pipes) 23 Incorporation of sections of Acts of 1893 and 1913.

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922. (Alterations consequent on changing levels of streets to be made at expense of magistrates and council) and 26 (Magistrates and council not to be bound to execute all works) of the Act of 1893 and section 30 (Corporation empowered or may be required to underpin or otherwise strengthen houses near works) of the Act of 1913 shall so far as applicable apply mutatis mutandis to the works authorised to be executed by this Order and to the lands authorised to be acquired therefor and for the other purposes of this Order.

Lands for
works.

16. Subject to the provisions of this Order the Corporation may enter upon purchase take hold appropriate and use the lands houses and property respectively shown on the deposited plans and described in the deposited book of reference or such part or parts thereof as may be required for or in connection with the works authorised by the section of this Order the marginal note whereof is "New works."

Purchase of
lands for
public im-
provements.

17. Subject to the provisions of this Order the Corporation may for the purposes of public improvements enter upon purchase take hold appropriate and use the lands houses and property respectively hereinafter mentioned and shown on the deposited plans and marked thereon area "A" and area "B" respectively and described in the deposited book of reference or any part or parts of the same The said lands houses and other property are the following :—

Area "A" The lands within the city of Edinburgh and city parish of Edinburgh situate within the area marked "A" delineated upon the deposited plans and bounded by a line commencing at a point in Dumbiedykes Road two yards or thereabouts east from the north-east corner of the property known as Salisbury Square and extending northwards along Dumbiedykes Road for a distance of thirty-four yards or thereabouts thence westwards into Salisbury Street for a distance of thirteen yards or thereabouts thence southwards across the eastern terminus of Salisbury Street for a distance of nine yards or thereabouts thence westwards along the south side of Salisbury Street for a distance of twenty-nine yards or thereabouts thence southwards in a straight line to or near to

the north-west corner of the buildings known as Salisbury Square for a distance of nineteen yards or thereabouts thence eastwards for a distance of twenty-eight yards or thereabouts to the point of commencement:

A.D. 1922.

Area " B " The lands within the city of Edinburgh and city parish of Edinburgh situate within the area marked " B " delineated upon the deposited plans (consisting of enclosure 196b and of part of enclosure 238 on the $\frac{1}{2500}$ Ordnance survey map (edition 1914)) and bounded by a line commencing at a point on the eastern boundary wall or fence of enclosure 249 on the said Ordnance survey map twelve yards or thereabouts north from the south-east corner of the enclosure 195a on the said Ordnance survey map thence proceeding in a north-westerly direction along the said boundary wall or fence to a point one hundred and fifty-four yards or thereabouts from the point of commencement thence proceeding in a northerly direction for a distance of forty-nine yards or thereabouts along the western boundary of the enclosure 196b on the said Ordnance survey map adjacent to the north-west corner of the said last-mentioned enclosure thence in a south-easterly direction along the south side of the road or track forming the northern boundary of the said last-mentioned enclosure until it meets the public road from Ravelston Dykes to " Rest and be Thankful " thence proceeding for a distance of one hundred and forty-three yards or thereabouts in a south-westerly southerly and westerly direction along the eastern side of the public way or path to the point of commencement.

18. Upon the completion of Work No. 1 the lands and solum of the existing public way or path referred to in the description of the said Work No. 1 so far as stopped up and discontinued shall be and the same are hereby vested in the Corporation freed and discharged from the public use thereof and from all other rights in and over the same.

Provisions
as to
Corstor-
phine Hill
public way.

19. Subject to the provisions of this Order the Corporation may purchase enter upon take hold and use the lands delineated on the deposited plans and in the

Power
to take
lands for

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922.
 gas under-
 taking.

deposited book of reference and hereinafter in this section described and may hold use and apply such lands or any part thereof for and in connection with the gasworks of the Corporation authorised by the Edinburgh and Leith Corporations Gas Act 1898 but shall not manufacture gas or residual products thereon The said lands are the following :—

Area "C" The lands and foreshore within the city of Edinburgh and city parish of Edinburgh situate within the area marked "C" delineated upon the deposited plans and bounded by a line commencing at a point upon the Shore Road West Granton at the north-east corner of enclosure 939 upon the $\frac{1}{2500}$ Ordnance survey map (edition 1914) thence extending south-westwards along the south side of the said road to a point therein twenty-three yards or thereabouts east from the road known as Gipsy Brae thence westwards in a straight line for a distance of two hundred yards or thereabouts thence south-westwards for a distance of one hundred and ninety-two yards or thereabouts till it meets the northern boundary of enclosure 941 upon the Ordnance survey map aforesaid thence westwards along the northern boundary of enclosures 941 467 and 465 on the Ordnance survey map aforesaid to a point on the northern boundary of enclosure 465 on the Ordnance survey map aforesaid two hundred and twenty-six yards or thereabouts west from the east boundary of the said last-mentioned enclosure thence northwards by an irregular line across the foreshore towards the western face of the Birnie Rocks thence north-eastwards along the western and northern boundary of the said rocks thence in an easterly direction along the line of low-water mark for a distance of five hundred and eighty-seven yards or thereabouts thence southwards in a straight line with the wall and fence forming the western boundary of the yard or works of Messieurs Bain and Brown Limited thence continuing in a southerly direction in a straight line to the point of commencement.

Omission
 or mis-

20. If there be any omission mis-statement or erroneous description of any lands which may be re-

quired or taken for the purposes of this Order or any of them or of the owners lessees or occupiers of any such lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to the sheriff for the correction thereof and if it appear to the sheriff that such omission mis-statement or erroneous description arose from accident or mistake he shall certify the same accordingly and shall in such certificate state the particulars of the omission and in what respect any such matter is mis-stated or erroneously described and the decision of the sheriff in such matter shall be final.

A.D. 1922.
 ———
 statement
 in plans or
 book of
 reference
 may be
 corrected.

21. The certificate of the sheriff shall be deposited in the office at Edinburgh of the principal sheriff clerk of the county of Midlothian and a duplicate thereof shall also be deposited at the office of the principal sheriff clerk of the county of the city of Edinburgh and such certificate and duplicate shall be kept by such sheriff clerks respectively along with the other documents to which they relate and thereupon the deposited plans and book of reference shall be deemed to be corrected in accordance with the certificate and the Corporation may enter on purchase take hold and use for the purposes of this Order any lands in accordance with such certificate as if such omission mis-statement or erroneous description had not been made.

Certificates
 to be
 deposited.

22. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of three years from the commencement of this Order.

Limiting
 period for
 compulsory
 purchase of
 lands.

23. Subject to the provisions of this Order the Corporation may during the execution of the new tramways and the other works by this Order authorised stop up temporarily the carriageway or footway of any street road or bridge as may be necessary and for that purpose may put up bars posts and other erections Provided that the Corporation shall before stopping up any footway under this section provide a temporary substitute therefor with access therefrom to any houses.

Stoppage
 of roads
 during
 execution of
 works.

24. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this

Power to
 grant servi-
 tudes &c.

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922. Order grant to the Corporation any servitude right or
by agree- privilege (not being a servitude right or privilege of
ment. water in which persons other than the grantors have
an interest) required for the purposes of this Order or
any of them in over or affecting any such lands and the
provisions of the said Acts with respect to lands and
ground annuals or feu duties so far as the same are applic-
able in this behalf shall extend and apply to such grants
and to such servitudes rights and privileges as aforesaid
respectively.

Owners
may be
required to
sell parts
only of
certain
lands and
buildings.

25. And whereas in the exercise by the Corporation
of the powers of this Order it may happen that portions
only of certain properties shown or partly shown on the
deposited plans will be sufficient for the purposes of
the Corporation and that such portions or some other
portions less than the whole can be severed from the
remainder of the said properties without material detri-
ment thereto Therefore the provisions set forth in
section 47 (Owners may be required to sell parts only of
certain lands and buildings) of the Order of 1916 shall
apply and have effect in respect of the properties men-
tioned in the Second Schedule to this Order.

For protec-
tion of North
British Rail-
way Com-
pany.

26. The provisions of section 117 (For protection
of North British Railway Company) of the Act of 1920
shall extend and apply mutatis mutandis to the new
tramways by this Order authorised.

For pro-
tection of
Caledonian
Railway
Company.

27.—(1) The provisions of section 118 (For protec-
tion of Caledonian Railway Company) of the Act of 1920
shall extend and apply mutatis mutandis to the new
tramways by this Order authorised.

(2) The Corporation shall not in the construction
maintenance or working of Tramway No. 4 by this Order
authorised in any way vary alter or interfere with or
injuriously affect the structure of the bridge or abutment
or piers thereof carrying the Caledonian Railway (Edin-
burgh Leith and Newhaven Extension Lines) over Easter
Road.

Water of
Leith.

28. Section 35 (Water of Leith) of the Order of 1921
in so far as the same is applicable to any railway under-
taking or to the land or other property or works belonging
to a railway company shall so far as applicable apply
mutatis mutandis to Works Nos. 2 and 3 by this Order
authorised.

PART III.

A.D. 1922.

SUPERANNUATION.

29. For the purposes of this Part of this Order Interpretation.
the following expressions shall have the meanings herein-
after respectively assigned to them (that is to say):—

“The Corporation” as hereinbefore defined in this Order shall be deemed to include the board of management of the Edinburgh College of Art and the Edinburgh Public Libraries Committee to the extent and effect following that is to say the said board of management and the said committee respectively shall as regards officers and servants in their employment be liable for all such obligations under this Part of this Order as the Corporation are liable for in respect of their own officers and servants and service with the said board of management and the said committee respectively shall be deemed to be service with the Corporation ;

“Officer or servant” means any officer or servant in the permanent and exclusive service of the Corporation and in the receipt of salary or wages but does not include (a) the chief constable or any member of the police force of the city to whom the provisions of the Police Pensions Act 1921 or any Act amending the same apply or (b) any officer or servant in the service of the board of management of the Edinburgh College of Art to whom the provisions of the Education (Scotland) (Superannuation) Act 1919 or any Act amending the same apply Provided that an officer or servant who is specially qualified by reason of the nature of his employment with the Corporation to instruct students or to carry out other work in the line of his employment for which he may be remunerated by persons other than the Corporation shall be held to be included within this definition if the consent of the Corporation in writing is obtained to his engaging in such work ;

“Superannuation fund” means the fund authorised to be established and administered under the provisions of this Part of this Order;

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922.

“Salary or wages” means the salary or wages actually payable by the Corporation to any officer or servant and includes the money value (as the same may be determined by the Corporation from time to time) of any benefits in kind attaching to an appointment such as board the occupation of a house or apartments rent free or supply of light or fuel or any other article but does not include war bonus or war wages or any like payments granted to meet abnormal conditions or occasional emoluments such as overtime payments casual allowances or gratuities single meals uniform tramway passes and the like ;

“Transferred authority” means and includes the Edinburgh and District Tramway Company Limited the provost magistrates and councillors of the burgh of Leith the suburban district committee of the county council of the county of Midlothian the Edinburgh and District Water Trustees and the Water of Leith Purification and Sewerage Commissioners ;

“The existing superannuation funds” means the funds established under the provisions of the Edinburgh Corporation (Superannuation) Order 1906 and any Act or Order amending the same and the fund established under the provisions of Part IV. of the Edinburgh and Leith Corporations Gas Order 1908 ;

“Aggregate service” means (a) the total completed years of service subject to the provisions of this Order of an officer or servant with the Corporation or any of the following bodies viz. the Edinburgh and Leith Corporations Gas Commissioners the Edinburgh and Leith Gas Light Company the Edinburgh Gas Light Company the provost magistrates and councillors of the burgh of Portobello and the City of Edinburgh Road Trust and that whether such service was continuous or not provided that in the case of the persons named in paragraph (A) of subsection (1) of section 57 of the Act of 1913 their years of service with the Edinburgh and District Water Trustees prior to their transfer

to the employment of the Corporation shall be deemed to be service with the Corporation and (b) such portion of the completed years of service of an officer or servant with a transferred authority or with the clerk of a transferred authority as is provided in this Order ;

“ Actuary ” means a Fellow of the Faculty of Actuaries in Scotland or of the Institute of Actuaries.

30. This Order shall for the purposes of this Part of this Order commence and have effect on and after the sixteenth day of May one thousand nine hundred and twenty-three.

31. Subject to the provisions of this Part of this Order every officer or servant to whom this Part of this Order shall apply shall contribute to the superannuation fund for the purposes of this Part of this Order a percentage amount of his salary or wages according to the scale provided in the Third Schedule to this Order and such amount shall be calculated to the nearest penny that is to say fractions of one half-penny and under shall not be calculated but fractions exceeding one half-penny shall be calculated as one penny and shall be deducted from time to time from the salary or wages payable to him.

32. The Corporation shall at such date or dates as they may determine in every financial year after the commencement of this Part of this Order contribute to the superannuation fund out of the assessments revenues or accounts upon which the salary or wages of each officer or servant contributing to the superannuation fund is or are respectively chargeable a sum equal in amount to the sum which during the same year shall be contributed thereto by the officers or servants.

33. Subject to the provisions of this Part of this Order this Part of this Order shall apply :—

(1) To every officer or servant who shall enter the employment or service of the Corporation after the commencement of this Part of this Order ;

(2) To every officer or servant who at the commencement of this Part of this Order shall be in the

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922.

employment or service of the Corporation and be a contributor to either the existing superannuation funds ; and

- (3) To every officer or servant (other than as aforesaid) who at the commencement of this Part of this Order shall be in the employment or service of the Corporation and who was either (a) transferred to the service of the Corporation under the provisions of the Act of 1920 or (b) employed by the Corporation subsequent to the thirty-first day of December one thousand nine hundred and eighteen for and in connection with the Corporation tramways provided such officer or servant elects to become a contributor under the provisions of the section of this Order the marginal note whereof is " Option to officers or servants of transferred authority and tramway employees."

Option to officers or servants of transferred authority and tramway employees.

34. Any officer or servant in the employment or service of the Corporation at the date of the passing of the Act confirming this Order who (a) was formerly in the service of a transferred authority but was not a contributor to either of the existing superannuation funds or (b) was employed by the Corporation subsequent to the thirty-first day of December one thousand nine hundred and eighteen for and in connection with the Corporation tramways may at any time within three months after the date of the passing of the Act confirming this Order signify in writing to the Corporation his intention not to avail himself of the provisions of this Part of this Order and in that event it shall not be obligatory on him notwithstanding anything in this Part of this Order contained to make any contributions or submit to any deduction from his salary or wages under this Part of this Order and he shall not be entitled to receive any superannuation allowance under this Part of this Order and the provisions of the Edinburgh Municipal and Police Acts the Gas Acts and the Water of Leith Acts respectively authorising the payment of gratuities or allowances to officers or servants shall not apply to any officer or servant who avails himself of the option under this section and who at the commencement of this Part of this Order is under fifty-five years of age.

35. The following provisions shall apply with regard to the service prior to the commencement of this Part of this Order of an officer or servant of a transferred authority to be reckoned in calculating the amount of the superannuation allowance to which such officer or servant may become entitled under the provisions of this Part of this Order :—

A.D. 1922.
 —
 Reckoning
 of service
 of officers
 or servants
 of trans-
 ferred
 authority
 and tram-
 way em-
 ployees.

(1) One half of the completed years of service with a transferred authority or with the clerk of a transferred authority of any officer or servant who does not avail himself of the option expressed in the section of this Order the marginal note whereof is "Option to officers or servants of transferred authority and tramway employees" shall be reckoned in calculating the amount of the superannuation allowance to which such officer or servant may become entitled under the provisions of this Part of this Order and that without any contribution being made by such officer or servant in respect of such previous service with a transferred authority or with the clerk of a transferred authority;

(2) The whole of the period of service with the Corporation of such officer or servant after the date of his transfer to the Corporation and the whole of the period of service with the Corporation of an officer or servant employed by the Corporation subsequent to the thirty-first day of December one thousand nine hundred and eighteen for and in connection with the Corporation tramways shall be reckoned in calculating the amount of the superannuation allowance to which such officer or servant may become entitled under the provisions of this Part of this Order. Provided that such officer or servant shall contribute to the superannuation fund such sums (accumulating at three pounds ten shillings per centum per annum compound interest) as would have been contributed by him had the provisions of the Edinburgh Corporation (Superannuation) Order 1906 been applicable to him as from the date of his transfer to or employment with the Corporation;

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922.

- (3) The sum to be paid to the superannuation fund by such officer or servant under the provisions of the immediately preceding subsection of this section may in his option be paid in one amount at the commencement of this Part of this Order or by way of instalments or uniform deductions from his salary or wages during a period not exceeding five years after the commencement of this Part of this Order.

Right to
super-
annuation
allowance.

36. Subject to the provisions of this Part of this Order every officer or servant to whom this Part of this Order shall apply who after not less than ten years' aggregate service shall either (1) have become incapable of discharging the duties of his office with efficiency by reason of permanent infirmity of mind or body (other than permanent incapacity due to an injury in respect of which he receives compensation under the Workmen's Compensation Act 1906 or any Act or Acts amending the same) or (2) have attained the full age of sixty years shall be entitled on resigning or otherwise ceasing to hold his office or employment to receive during life a superannuation allowance according to the scale provided in the section of this Order the marginal note whereof is "Scale of superannuation allowance."

Scale of
super-
annuation
allowance.

37. The scale for superannuation allowance shall be as follows (that is to say):—

An officer or servant who has completed ten years aggregate service shall be entitled to an annual allowance equal to ten-sixtieths of the average amount of his salary or wages during the five years ending on the day which immediately precedes the day on which he ceases to hold his office or employment:

With an addition of one-sixtieth of such average amount for every additional completed year of aggregate service until the completion of a period of aggregate service of forty years when a maximum allowance of forty-sixtieths of such average amount shall be granted:

Provided that in the case of officers or servants who are members of the Corporation fire brigade the following provisions shall have effect videlicet:

- (1) For every additional year of aggregate service beyond the period of twenty-four years

after any such member attains the age of twenty-five years there shall be added two-sixtieths instead of one-sixtieth of the said average amount so however that the superannuation allowance shall not exceed forty-sixtieths of the said average amount;

A.D. 1922.
—

(2) During each year for which two-sixtieths are so added or reckoned the contribution made by such member and the corresponding contribution made by the Corporation to the superannuation fund shall be double the amount which it would have been if such addition of benefit had not been made. Provided that contributions shall cease in such case after such member becomes entitled on retirement to claim the maximum superannuation allowance under this Order.

38. Every officer or servant whether or not he falls under the provisions of the section of this Order the marginal note whereof is "Application of Order to officers and servants" shall upon attaining the age of sixty-five years retire from the service of the Corporation. Provided as follows:—

Retirement
at age of
sixty-five

- (1) If the Corporation are of opinion that it would be expedient in the interests of the public service for any such officer or servant to continue to hold his office or employment or some other office or employment he shall be at liberty to do so during such further period as the Corporation shall by resolution determine;
- (2) In the event of such officer or servant being entitled to a superannuation allowance under the provisions of this Part of this Order the payment of such allowance shall be suspended so long as he continues to hold any office or employment under the Corporation if the salary wages or emoluments thereof are equal to or in excess of the amount of such allowance but if they are not then only so much of such allowance shall be paid so long as he holds such office or employment as will make up the deficiency;
- (3) Service after sixty-five years of age shall not be reckoned in computing the amount of superannuation allowance; and

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922.
—

- (4) An officer or servant who continues to hold office or employment after attaining the age of sixty-five years shall not after attaining that age be under obligation to contribute to the superannuation fund.

Superannuation fund.

39.—(1) The Corporation shall establish and administer a superannuation fund to which shall be carried and credited in each year—

(a) The amounts contributed or paid in such year under the provisions of this Part of this Order by officers and servants contributing to the superannuation fund;

(b) A sum equal in amount to the sum which during such year has been contributed to the superannuation fund by officers or servants (in this Part of this Order referred to as “the equivalent contribution”) and such further sums (if any) as the Corporation may become liable to carry and contribute thereto under the provisions of this Part of this Order;

(c) All dividends and interest arising in such year out of the investment or use of the superannuation fund or any part thereof;

(d) Such amount as may be certified by an actuary as soon as may be after the commencement of this Part of this Order as necessary in order that the superannuation fund may be solvent to be calculated so as to cast upon the Corporation so far as may be an equal annual charge for a period not exceeding forty years from the commencement of this Part of this Order.

(2) The Corporation shall pay into the superannuation fund the amounts referred to in the section of this Order the marginal note whereof is “Transfer of existing superannuation funds.”

(3) The equivalent contribution and the equal annual charge shall be made out of and shall be charged upon the same assessments revenues and accounts as those upon which the salaries or wages from which the said amounts so deducted are charged.

40. At the commencement of this Part of this Order the Corporation shall transfer to the superannuation fund the amounts then standing at the credit of the existing superannuation funds and the whole assets of the existing superannuation funds shall by virtue of this Order be transferred to the superannuation fund and shall be held administered and applied by the Corporation for the purposes of and as part of the superannuation fund.

A.D. 1922.

Transfer of
existing
superannu-
ation funds.

41. The surplus of the annual income of the superannuation fund above the expenditure thereout shall from time to time be invested in the manner mentioned in the section of this Order the marginal note whereof is "Investment of reserve funds &c."

Investment
of surplus
income.

42. The Corporation shall pay out of the superannuation fund—

Payments
out of
superannu-
ation fund.

(1) The superannuation allowances to retired officers and servants which prior to the commencement of this Part of this Order were payable out of the existing superannuation funds :

(2) The superannuation allowances to officers and servants payable under the provisions of this Part of this Order :

(3) The amount of the contributions of officers and servants to the superannuation fund or to either of the existing superannuation funds which under the provisions of this Part of this Order fall to be returned to such officers and servants or to the representatives of such officers and servants :

(4) All other sums which under the provisions of this Part of this Order are payable out of the superannuation fund.

43.—(1) Once at least in every five years the condition of the superannuation fund shall be submitted by the Corporation to an actuary who shall consider the same and shall make an actuarial valuation of the superannuation fund and shall embody the result in a report to the Corporation.

Actuarial
investiga-
tion of
superannua-
tion fund.

(2) Where on any such valuation the actuary certifies that a deficiency or a disposable surplus is disclosed the Corporation shall submit to the Secretary for Scotland

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922. — a scheme for making good the deficiency by means of an increase in the payments by the Corporation into the superannuation fund or (as the case may require) for disposing of the surplus by reducing those payments.

(3) Where on any such valuation the actuary certifies that in order to maintain an equality of value as respects persons becoming contributors after the date of the valuation between the amounts to be contributed by or in respect of such persons and the amounts of benefit to which such persons will be entitled it is expedient to increase or decrease the contributions as provided by this Part of this Order in respect of such persons the Corporation shall either submit to the Secretary for Scotland a scheme making provision for such increase or decrease (as the case may require) to be applied in equal proportions as between the Corporation and such persons or shall make provision for such increase or decrease in any scheme under the provisions of the immediately preceding subsection of this section.

(4) Where any such scheme is approved by the Secretary for Scotland this Part of this Order shall have effect subject to the provisions of the scheme.

(5) The Corporation shall send a copy of the actuary's report to the Secretary for Scotland and if within six months of the receipt by the Corporation of such report embodying or accompanied by a certificate as aforesaid the Corporation fail to submit a scheme under this section or to submit a scheme of which the Secretary for Scotland approves the Secretary for Scotland may himself make a scheme which shall have the same effect as a scheme submitted by the Corporation and approved by him.

Forfeiture
of claim to
allowance
in certain
cases.

44. An officer or servant who is dismissed or resigns or otherwise ceases to hold office or employment in consequence of or following upon any offence of a fraudulent character or of grave misconduct shall forfeit all claim to any superannuation allowance under the provisions of this Part of this Order. Provided that in the case of any such officer or servant the Corporation may if they see fit return to him out of the superannuation fund a sum equal to the amount of his own contributions to the superannuation fund or to either of the existing superannuation funds without interest or such part of such contributions as the Corporation shall think fit.

45. Except as is provided in the section of this Order of which the marginal note is "Forfeiture of claim to allowance in certain cases" an officer or servant who has not become entitled to a superannuation allowance and who resigns his office or employment or is dismissed or in any way ceases to hold his office or employment shall be entitled to receive out of the superannuation fund a sum equal to the amount of his own contributions to the superannuation fund or to either of the existing superannuation funds without interest. Provided that if he subsequently be again appointed to be an officer or servant his aggregate service previous to his ceasing to hold office or employment as aforesaid shall not be reckoned as or be service for the purposes of this Part of this Order unless upon the fresh appointment he pays back to the superannuation fund the amount so received with compound interest thereon accumulating at the rate of three and one half per centum per annum from the date when the return to him of such contributions was made.

A.D. 1922.
Return of
contribu-
tions in
certain
cases.

46.—(1) In the event of an officer or servant dying before becoming entitled to or receiving a superannuation allowance the Corporation shall out of the superannuation fund pay to his legal personal representatives a sum equal to the amount of his own contributions to the superannuation fund or to either of the existing superannuation funds but without interest thereon.

Return in
case of
death.

(2) In the event of an officer or servant dying before he shall have received by way of superannuation allowance an amount in the aggregate equal to the amount of his own contributions as aforesaid but without interest thereon the Corporation shall out of the superannuation fund pay to his legal personal representatives the difference between the amount which such officer or servant has received by way of superannuation allowance and the sum to which such contributions amounted at the date of his retirement.

47. Where for the due and efficient discharge of the duties of any office under the Corporation professional technical or other special qualifications are required and where any person possessing such qualifications shall have been prior to the commencement of this Part of this Order or may hereafter be appointed to such office when above thirty years of age it is hereby provided that when

Power to
add a
number of
years in
certain
cases.

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

D. 1922; such person shall retire from the Corporation service such a number of years not exceeding ten as the Corporation may fix (a) within three months from the commencement of this Part of this Order in the case of an existing officer and (b) within three months from the time of his entry to the service in the case of an officer who may hereafter be appointed shall in computing the amount of superannuation allowance which may be granted to him under the provisions of this Part of this Order be added to the number of years during which he may have actually served the Corporation. Provided that such officer shall pay into the superannuation fund in respect of each of such added years a contribution according to the scale provided in the Third Schedule to this Order calculated on the amount of the salary payable or paid to him during the first year of his employment with the Corporation and the Corporation shall also pay into the superannuation fund an amount equivalent to the amount of such contributions.

Superannuation allowance not assignable.

48. Subject to the provisions of this Part of this Order every superannuation allowance granted under the provisions of this Part of this Order shall be payable to or in trust for the officer or servant and shall not be assignable nor shall it be arrestable for his debts or other liabilities.

Provisions as to payment of superannuation allowance &c.

49. The following provisions shall have effect with respect to the payment of superannuation allowances or to the return of contributions :—

- (1) Where an officer or servant who has retired on a superannuation allowance is in receipt of parochial relief the Corporation may pay the whole or any part of the superannuation allowance to the parish council or other authority giving the relief and any sums so paid may be applied in repayment of any sums expended in such relief and subject thereto shall be paid or applied by the parish council or other authority to or for the benefit of such officer or servant :
- (2) Where an officer or servant who has retired on a superannuation allowance neglects to maintain any person whom he is liable to maintain the Corporation may in their discretion pay or apply the whole or any part of the superannuation allowance to or for the benefit of that person :

- (3) Where an officer or servant who has retired on a superannuation allowance appears to the Corporation to be insane or otherwise incapacitated to act the Corporation may pay so much of the superannuation allowance as they think fit to the institution or person having the care of such officer or servant but shall in such case apply the surplus (if any) for or towards the maintenance and benefit of the dependents (if any) of such officer or servant except so far as the said surplus may be otherwise applied for the benefit of such officer or servant : A.D. 1922.
- (4) On the death of an officer or servant to whom a sum not exceeding one hundred pounds is due under the provisions of this Part of this Order then if the Corporation so direct confirmation or other proof of the title of the personal representative of the deceased may be dispensed with and the sum may be paid or distributed to or among the persons appearing to the Corporation to be beneficially entitled to the personal estate of the deceased or to or among any one or more of these persons and the Corporation shall be discharged from all liability in respect of such payment or distribution :
- (5) If the total estate of any deceased officer or servant after deduction of debts and funeral expenses exceeds one hundred pounds any moneys which may under the provisions of the last preceding subsection of this section be paid or distributed by the Corporation to or among any person or persons other than the legal personal representative of such deceased officer or servant shall notwithstanding such payment or distribution be for the purposes of estate duty treated as passing under the will or intestacy of the deceased officer or servant :
- (6) The Corporation before paying or distributing any moneys due to any deceased officer or servant to or among any person or persons other than the legal personal representative of such deceased officer or servant shall require—

Where the total estate of the deceased officer or servant including the amount of

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922.

such moneys does not after deduction of debts and funeral expenses exceed the value of one hundred pounds a declaration to that effect by the claimant or one of the claimants or other the person or persons to or among whom the Corporation see fit to pay or distribute such moneys;

Where the total estate of the deceased officer or servant including the amount of such moneys but after deduction of debts and funeral expenses exceeds one hundred pounds the production of a certificate from the Commissioners of Inland Revenue of the payment of the estate duty and a duly stamped receipt for the legacy or succession duty payable in respect of such moneys or of a certificate stating that no legacy or succession duty is payable :

- (7) Any sum payable to a minor under the provisions of this Part of this Order may be paid either to the minor or to such person and on such conditions for the benefit of the minor as to the Corporation seems expedient :
- (8) Where a payment is made to any person by the Corporation in pursuance of this section the receipt of that person shall be a good discharge for the sum so paid.

Proof of
birth and of
service.

50. Every officer or servant shall upon being requested to do so produce such evidence as may be satisfactory to the Corporation of the date of his birth and of his period of service otherwise than with the Corporation which under the provisions of this Part of this Order may form part of his aggregate service.

Temporary
sickness or
disable-
ment &c.

51. In the case of an officer or servant being temporarily unable to perform his duties through sickness or disablement or any other cause and not receiving any salary or wages during such period or part thereof or only receiving salary or wages at a reduced rate the Corporation may at the request of such officer or servant either treat for the purpose of this Part of this Order the period during which salary or wages are not paid or are paid at a reduced rate as continuous service and in that case the contributions of both parties to the superannuation fund shall be calculated and paid as if the normal

salary or wages had been paid during such period or suspend the said contributions in which case such period shall not be reckoned as service for the purpose of this Part of this Order. A.D. 1922.

52.—(1) All superannuation allowances under this Part of this Order shall be in lieu of or imputed pro tanto to account of any retiring or other allowance granted by the Corporation under the Edinburgh Municipal and Police Acts the Water Acts the Gas Acts or the Water of Leith Acts to the respective officers or servants receiving such superannuation allowances. Saving of provisions of Edinburgh Municipal and Police Acts &c.

(2) Section 23 (Allowances to employees) of the Edinburgh and District Waterworks Order 1904 shall be read and construed as if the words “five hundred pounds” were omitted therefrom and the words “one thousand pounds” were inserted therein in lieu thereof.

(3) Save as in this section provided nothing in this Part of this Order shall prejudice or affect the provisions of the Edinburgh Municipal and Police Acts the Water Acts the Gas Acts or the Water of Leith Acts which are not by this Part of this Order expressly repealed.

53. Any officer or servant transferred to the service of the Corporation from the service of the Edinburgh and District Water Trustees who exercises his option not to avail himself of the provisions of this Part of this Order shall be entitled to receive from the Corporation the maximum allowance which the said Trustees could have granted to him under the powers conferred by section 23 (Allowances to employees) of the Edinburgh and District Waterworks Order 1904 and section 40 (Allowance to officials on retirement) of the Edinburgh and District Water Order 1914. Saving for officers and servants of Edinburgh and District Water Trustees.

54. Any question which may arise between the Corporation and any officer or servant as to the right to or the amount of a superannuation allowance or the amount of the contribution of such officer or servant or the return of his contributions under the provisions of the section of this Part of this Order the marginal note whereof is “Return of contributions in certain cases” and any question which may arise between the Corporation and the legal personal representative of any officer or servant as to the return of contributions or any part thereof under the provisions of the section of this Part of this Order Arbitration.

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922. — the marginal note whereof is “ Return in case of death ” shall in default of agreement be submitted to the arbitration of a single arbiter in accordance with the provisions of the Arbitration (Scotland) Act 1894.

Repeal. 55. Subject as hereinafter mentioned the provisions of the following Act and Orders are hereby repealed (videlicet) :—

(1) The Edinburgh Corporation (Superannuation) Order 1906 ;

(2) Part VII. (Superannuation) of the Act of 1913 ; and

(3) Part IV. (Superannuation Fund) of the Edinburgh and Leith Corporations Gas Order 1908 :

Provided that nothing in this Part of this Order shall prejudice or affect the payment of any superannuation allowance payable under the said Act or Orders or any of them or any other right or liability conferred or accrued or anything duly done or suffered before the commencement of this Part of this Order and under and in pursuance of the provisions of the said Act or Orders nor shall anything in this Part of this Order prejudicially affect the right or position of any officer or servant of the Corporation under the said Act or Orders or any of them.

PART IV.

FINANCE.

Borrowing
for water
under-
taking.

56. In addition to any money which the Edinburgh and District Water Trustees or the Corporation have borrowed or are authorised to borrow for the purposes of the water undertaking under the Water Acts the Corporation may borrow under the authority of this Order for the general purposes of the water undertaking any sum or sums not exceeding one hundred thousand pounds and the provisions of the Edinburgh Municipal and Police Acts in respect of money borrowed and to be borrowed and the security therefor and the repayment thereof by means of a sinking fund shall apply to the money to be borrowed under the provisions of this section.

Borrowing
for
tramway
purposes.

57.—(1) The Corporation may borrow (a) for the adaptation and conversion to electric traction of the Corporation tramways for the equipment of the same

for the purchase of cars and rolling stock and for the providing or reconstructing tramway depôts the sum of four hundred and twenty-five thousand pounds in addition to the sum of three hundred and fifty thousand pounds authorised to be borrowed for these purposes by the Order of 1919 making in all for these purposes the sum of seven hundred and seventy-five thousand pounds and (b) for and in connection with the tramways by this Order authorised the sum of fifty-seven thousand nine hundred and eight pounds and the provisions of the Edinburgh Municipal and Police Acts in respect of money borrowed and to be borrowed and the security therefor and the redemption thereof by means of a sinking fund shall apply to the money to be borrowed under the provisions of this section.

A.D. 1922.

(2) The Corporation shall provide annually from the revenues of their tramway undertaking a sum adequate to meet depreciation until the moneys borrowed under the provisions of this section have been redeemed through the operation of the sinking fund.

58. The Corporation are hereby authorised to borrow money for executing the works authorised by the section of this Order the marginal note whereof is "New works" and for the acquisition of lands and heritages servitudes and other property which may be required for the purposes of that section or for the purposes of the section of this Order the marginal note whereof is "Purchase of lands for public improvements" and the provisions of the Edinburgh Municipal and Police Acts in respect of money borrowed and to be borrowed and the security therefor and the redemption thereof by means of a sinking fund shall apply to the money to be borrowed under the provisions of this section.

Borrowing
for new
works &c.

59. The Corporation may impose assess and levy within the city and recover apply and use for the execution of the works authorised by the section of this Order the marginal note whereof is "New works" and for the acquisition of lands and heritages and servitudes or other property which may be required for the purposes of that section or for the purposes of the section of this Order the marginal note whereof is "Purchase of lands for public improvements" the burgh assessments under their control applicable to general improvements under the third head of estimate mentioned in section 66 (Expenses to be estimated) of the Act of 1879.

Power to
apply
burgh
assessments.

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922.

Provisions
in regard to
sinking
fund and
interest in
respect of
Portobello
electricity
station &c.

60.—(1) Notwithstanding anything contained in any Act the Corporation may suspend the annual provision required to be made for the repayment of moneys already borrowed or to be borrowed for and in connection with the new electricity generating station of the Corporation at Westbank Portobello and relative substations and for main transmission lines therefrom while the expenditure out of such moneys remains unremunerative for such period and subject to such conditions as the Electricity Commissioners may determine. Provided that such suspension shall not be for a longer period than five years from the fifteenth day of May one thousand nine hundred and twenty.

(2) The Corporation may with the consent of the Electricity Commissioners borrow on the security of the revenue of the electricity undertaking of the Corporation and the burgh assessments such sum as may be requisite for the purpose of paying out of capital interest on moneys already borrowed or to be borrowed by the Corporation for the purposes referred to in subsection (1) of this section during the period of such suspension or until the expiration of such shorter period (if any) as the Electricity Commissioners may prescribe. The period for the repayment of moneys borrowed under this subsection shall be such period not exceeding twenty-five years from the date or dates of borrowing the same as may be prescribed by the Electricity Commissioners.

Provision as
to water
assessments.

61. The Corporation on the same respective dates as they are required under the Edinburgh Municipal and Police Acts to estimate and fix the sums of money necessary to be levied for the purposes of those Acts and to impose and levy the burgh assessments shall also estimate and fix the amount of money necessary to be levied for the purposes of the Water Acts and assess and levy the water rates and assessments authorised by the Water Acts and the provisions of the Water Acts shall be read and construed accordingly.

Investment
of reserve
funds &c.

62. The Corporation may invest in Government securities or in any other securities in which trustees are by the law of Scotland for the time being authorised to invest including stock or securities of the Corporation any reserve depreciation renewal superannuation or other funds belonging to or held by them on account of or in connection with any of the departments administered by them or under their control.

63. The assessments appropriate to any of the purposes of this Order authorised by the Edinburgh Municipal and Police Acts the Water Acts and the Gas Acts shall extend and apply to the money which the Corporation are by this Order authorised to borrow and to any expenditure incurred by the Corporation in implementing any obligation under this Order.

A.D. 1922.

Application
of assess-
ments.

64. The Corporation shall furnish to the Minister of Transport the annual accounts of their tramway and omnibus undertakings.

Annual
accounts to
be furnished
to Minister
of Trans-
port.

PART V.

MISCELLANEOUS.

65. The Corporation may notwithstanding anything to the contrary contained in the following statutes viz. 56 Geo. III. cap. 41 7 & 8 Geo. IV. cap. 76 and 1 & 2 William IV. cap. 45 or in any other Act of Parliament from time to time provide erect and maintain on the lands belonging to the Corporation lying on the south side of Princes Street and known as East Princes Street Gardens and West Princes Street Gardens respectively suitable buildings for the purpose of and to be used as lavatories waterclosets and urinals for the use and accommodation of the public and may employ persons to manage and take charge of any such lavatories and other conveniences provided or erected under this section and may from time to time make enforce alter and rescind regulations with respect to admission thereto the use thereof and the charges to be made therefor.

Erection of
lavatories
&c. in
Princes
Street
Gardens.

66. From and after the commencement of this Order section 72 (Buildings not to be brought forward) of the Act of 1913 shall be read and construed as if the following proviso at the end of the said section were omitted therefrom viz. "Provided also that the provisions of this section shall not apply to any house or building to which the provisions of the immediately preceding section are applicable."

Amend-
ment of
section 72
of Act of
1913.

67. From and after the commencement of this Order section 29 (Joint bridges) of and the Eleventh Schedule to the Act of 1920 shall be read and construed as if the words "The Stank Bridge on the Corstorphine Village

Amendment
of Act of
1920.

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922. — Road " and " The Deanburn Bridge on the Old Dalkeith Road " were omitted from the said schedule.

Amendment of section 13 of Order of 1903. 68. From and after the commencement of this Order section 13 (Separate accounts to be kept) of the Edinburgh Corporation (Markets Slaughter-Houses &c.) Order 1903 shall be read and construed as if the words " (except the gut and fearns) " were omitted therefrom and the words " (except the hoofs spurs gut and fearns) " were inserted therein in lieu thereof.

Confirmation of agreement between Corporation and Zoological Society of Scotland. 69. The agreement as set forth in the Fourth Schedule to this Order made between the Corporation and the Zoological Society of Scotland is hereby confirmed and made binding on the parties thereto and shall have effect according to the true intent and meaning thereof.

Confirmation of agreement between Corporation and Alexander Wood Inglis. 70. The Agreement as set forth in the Fifth Schedule to this Order made between the Corporation and Alexander Wood Inglis is hereby confirmed and made binding on the parties thereto and shall have effect according to the true intent and meaning thereof and the sums of one thousand four hundred and fifty pounds and one thousand three hundred pounds referred to in Article First of the said agreement shall be paid in the manner specified in the said agreement and it shall not be necessary to apply to the Court of Session for authority to carry out any of the provisions of the said agreement.

Crown rights. 71. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown or shall subject to the provisions of this Order any land buildings or works vested in or occupied by the Crown or any department of His Majesty's Government except to such extent as His Majesty or such department may voluntarily agree and in particular nothing herein contained shall authorise the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of

Trade as the case may be on behalf of His Majesty first A.D. 1922.
had and obtained for that purpose (which consent the
said Commissioners and Board are hereby respectively
authorised to give).

72. The Corporation shall make compensation for Crown
the damage or injury (if any) which may be sustained salmon
by His Majesty or His tenants in respect of His right of fishings.
salmon fishing through the exercise of the powers of this
Order And in case the amount of such compensation
shall not be agreed upon the same shall be ascertained
and fixed by the decision and decree arbitral of two
arbiters to be appointed the one by the Commissioners of
Woods and the other by the Corporation or of an oversman
to be named by the said arbiters to act in the event of
their differing in opinion and the Arbitration (Scotland)
Act 1894 shall apply to any arbitration under this section.

73. Notwithstanding the provisions contained in the Crown
section of this Order of which the marginal note is minerals.
“Power to take lands for gas undertaking” or in any
public statute His Majesty and His lessees for their
respective interests may work any minerals belonging
to the Crown under or adjacent to the lands and works
of the Corporation authorised to be taken or constructed
by this Order but in the event of any such right being
at any time intended to be exercised the provisions of
the Railways Clauses Consolidation (Scotland) Act 1845
with respect to mines lying under or near a railway shall
apply when the workings reach a point the distance of
which from the nearest of such lands would not if
measured horizontally exceed one half the depth of
such workings below the surface level of such lands and
in the said application of those provisions the term
“company” shall mean the Corporation and the term
“railway” shall mean the said lands and works.

74. All costs charges and expenses of and incident Expenses
to the preparing for obtaining and confirming this Order of O. der.
and otherwise in relation thereto shall be paid by the
Corporation out of moneys borrowed or assessments
imposed by the Corporation under the powers of this
Order and if paid out of borrowed money shall be repaid
within five years from the commencement of this Order.

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922. The SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

(Referred to in the section of this Order of which the marginal note is "Application of sections of Corporation Tramways Acts.")

Date of Act or Order and Marginal Note of Section	Number of Section.
The Edinburgh Improvement and Tramways Act 1896 :	
Tramways to be kept on level of surface of road	13
Further provisions as to construction of tramways	14
Penalty for not maintaining rails and roads	16
Sanitary authority to have access to sewers	17
Level of rails	20
Temporary tramways	22
Application of road materials excavated in construction of tramways	23
Power to use lands for tramway purposes	25
Power to use animal or mechanical power	26
Byelaws	27
Penalties for offences against byelaws	28
Byelaws to remain in force till altered	29
Saving for Corporation and magistrates' authorities	30
Power to form junctions	31
As to notices delivered under Tramways Act 1870 &c.	32
Tramways on streets not yet formed	33
Tolls	35
Fares on Sunday or public holidays not to be raised	36
Approval of Board of Trade of mechanical power system	38
The Edinburgh Corporation Act 1897 :	
Power to Corporation to work tramways	22
Power to lease tramways	23
The Edinburgh Corporation Tramways Order 1905 :	
Amendment of existing speed limit on tramways	4
Byelaws of local authority	5
The Edinburgh Corporation Act 1906 :	
Byelaws	11
Gauge of tramways	12

[13 GEO. 5.] *Edinburgh Corporation Order* [Ch. iv.]
Confirmation Act, 1922. (Session 2.)

Date of Act or Order and Marginal Note of Section	Number of Section.	A.D. 1922
The Edinburgh Corporation Act 1906—continued:		
Corporation may lop trees overhanging public highways - - - - -	14	
Adaptation of existing tramways and construction of tramways and works - - - - -	20	
Rails of tramways - - - - -	22	
Special provisions as to use of electrical power - - - - -	23	
For protection of Post Office telegraph lines - - - - -	24	
Alteration of telegraph lines of Postmaster-General - - - - -	25	
Apparatus used for mechanical power to be deemed part of tramways - - - - -	26	
Attachment of brackets &c. to buildings &c. - - - - -	27	
Provisions as to motive power - - - - -	28	
Penalty for malicious damage - - - - -	29	
Power to acquire patent rights - - - - -	30	
Provision as to general Tramway Acts - - - - -	33	
The Edinburgh Corporation Order 1910 :		
Use of tramway posts by Postmaster-General - - - - -	12	
The Edinburgh Corporation Order 1916 :		
Cross-overs to be constructed in certain cases - - - - -	10	
Power to make additional cross-overs and to double tramway lines - - - - -	11	
New tramways to be inspected before being opened - - - - -	12	
Corporation may reduce footpath for constructing new tramways - - - - -	16	
Shelters or waiting rooms - - - - -	25	
As to removal of snow &c. - - - - -	26	
As to licensing carriages &c. - - - - -	27	
For protection of Blackford Hill Observatory - - - - -	29	
The Edinburgh Boundaries Extension and Tramways Act 1920 :		
Subsidiary works - - - - -	97	
Corporation may supply electricity for working tramways - - - - -	98	
As to running through cars - - - - -	99	
Passengers' luggage - - - - -	100	
Rates for parcels &c. - - - - -	101	

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922.

THE SECOND SCHEDULE.

(Referred to in the section of this Order of which the marginal note is "Owners may be required to sell parts only of certain lands and buildings.")

PROPERTIES OF WHICH PORTIONS ONLY MAY BE TAKEN
 WITHOUT TAKING THE WHOLE.

Parish.	Numbers on Deposited Plans.
City Parish of Edinburgh -	10 10 23 23 23 23 23 23 23 24 26 28 30 31 31 31 31 31 31 31 31.

THE THIRD SCHEDULE.

(Referred to in the section of this Order of which the marginal note is "Contributions of officers and servants.")

SCALE OF CONTRIBUTIONS.

1. In the case of an officer or servant who is a contributor to an existing superannuation fund and who at the commencement of Part III. of this Order was not over twenty-five years of age three per centum upon his salary or wages.

2. In the case of an officer or servant who is a contributor to an existing superannuation fund and who at the commencement of Part III. of this Order was over twenty-five years of age and under thirty-five years of age three and one half per centum upon his salary or wages.

3. In the case of an officer or servant who is a contributor to an existing superannuation fund and who at the commencement of Part III. of this Order was over thirty-five years of age four per centum upon his salary or wages.

4. In the case of an officer or servant who on or after the commencement of Part III. of this Order becomes a contributor and who at the date of his becoming a contributor is not over twenty-five years of age three per centum upon his salary or wages.

5. In the case of an officer or servant who on or after the commencement of Part III. of this Order becomes a contributor and who at the date of his becoming a contributor is over twenty-five years of age and under thirty-five years of age three and one half per centum upon his salary or wages. A.D. 1922.

6. In the case of an officer or servant who on or after the commencement of Part III. of this Order becomes a contributor and who at the date of his becoming a contributor is over thirty-five years of age four per centum upon his salary or wages.

7. In the case of an officer or servant whose salary or wages does not amount to one hundred and thirty pounds per annum the rate of contribution shall so long as his salary or wages is under that amount be less than the rates hereinbefore provided by one half per centum upon such salary or wages.

8. In the case of an officer or servant who was a contributor to either of the existing superannuation funds and who at the date of his becoming a contributor was not over twenty-five years of age the rate of contribution shall be restricted to two and one half per centum upon his salary or wages so long as such salary or wages does not exceed one hundred and thirty pounds per annum.

THE FOURTH SCHEDULE.

(Referred to in the section of this Order of which the marginal note is "Confirmation of Agreement between Corporation and Zoological Society of Scotland.")

MINUTE OF AGREEMENT between the LORD PROVOST MAGISTRATES AND COUNCIL OF THE CITY OF EDINBURGH (hereinafter called "the Corporation") and the ZOOLOGICAL SOCIETY OF SCOTLAND (hereinafter called "the Society").

WHEREAS the Corporation in a Provisional Order which they are promoting in the present Session of Parliament are asking Parliamentary powers to effect a public improvement by closing up the path at Corstorphine Hill over which the public have a right of way and providing in lieu thereof a substituted way or path :

And whereas the said existing path partly passes through and partly adjoins the lands of Corstorphine Hill House feued by the Corporation to the Society by Feu Charter dated the 17th day of March and recorded in the General Register of Sasines applicable to the county of Edinburgh the 7th day of April both in the year 1914 :

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922.

And whereas the Society have agreed to co-operate with the Corporation in carrying out the proposed public improvement and it is desirable that the Agreement which has been arrived at between the parties should be reduced to writing:

Therefore the parties hereto have agreed and do hereby agree as follows videlicet:—

First As soon as convenient after the Provisional Order which the Corporation are promoting has been passed into law the Corporation shall take steps to close up the said existing path delineated and coloured pink on the plan annexed and signed with reference hereto between the point marked A and the point marked B on the said plan. The Corporation under the provisions of the said Provisional Order shall acquire the solum of the said path in so far as the same is not already vested in the Society and shall convey such solum to the Society to be held by them under the conditions and provisions of the said Feu Charter but without any additional feu-duty.

Second The Society agree to convey to the Corporation the strip of ground delineated and coloured blue on the said plan and forming part of the subjects contained in the said Feu Charter and the said strip of ground shall be so conveyed with and under the condition and real burden that the same shall in all time coming be open to be used by the public as a public way or path and pleasure ground. The said strip of ground shall further be conveyed free from any feu-duty or other burden and the Society shall continue to pay to the Corporation the feu-duty provided for in the said Feu Charter which feu-duty shall be a burden upon the remainder of the subjects contained in the said Feu Charter.

Third The Corporation shall at their own expense adapt the said strip of ground as a public way or path and pleasure ground in such manner as they may deem suitable and shall maintain the same as such in all time coming and shall preserve as far as possible the existing trees on said strip.

Fourth The Corporation shall at their own expense construct and maintain an unclimbable fence separating the said strip of ground from the remainder of the subjects belonging to the Society.

Fifth This Agreement is made subject to the approval of Parliament and the Secretary for Scotland and shall be scheduled to and confirmed by the Provisional Order and in the event of any alteration being made by Parliament or the Secretary for Scotland thereon which in the opinion of the Dean of the Faculty of Advocates is a material alteration of the conditions thereof it shall be in the power of either party to withdraw therefrom.

Sixth The whole expense of this Agreement and of any conveyance to follow thereon shall be borne and paid by the

[13 GEO. 5.] *Edinburgh Corporation Order* [Ch. iv.]
Confirmation Act, 1922. (Session 2.)

Corporation In witness whereof these presents consisting of this and the preceding page are together with the plan annexed hereto subscribed in duplicate by or on behalf of the parties hereto at Edinburgh as follows viz. They are subscribed for and on behalf of and by authority of the said Zoological Society of Scotland by Edward Theodore Salvesen (Lord Salvesen) President James Cossar Ewart Vice-President and Thomas Haining Gillespie Director-Secretary all of the said Society all on the sixteenth day of March nineteen hundred and twenty-two before these witnesses John Alexander Young clerk and Alison Baillie typist both to Messrs Whitson & Methuen chartered accountants 21 Rutland Street Edinburgh and they are subscribed by the Right Honourable Thomas Hutchison lord provost and Andrew Grierson solicitor Supreme Court town clerk both of Edinburgh in name and by authority of the said lord provost magistrates and remanent members of council present in council on the sixth day of April in the year last above-mentioned before these witnesses David Ovens Drummond lord provost's secretary City Chambers Edinburgh and Donald Cameron assistant in the town clerk's office Edinburgh.

D. O. DRUMMOND Witness.

DON. CAMERON Witness.

JOHN A. YOUNG Witness.

ALISON BAILLIE Witness.

Thos. HUTCHISON Lord Provost.

A. GRIERSON Town Clerk.

EDW. T. SALVESEN.

J. COSSAR EWART.

T. H. GILLESPIE.

THE FIFTH SCHEDULE.

(Referred to in the section of this Order of which the marginal note is "Confirmation of Agreement between Corporation and Alexander Wood Inglis.")

SUPPLEMENTARY MINUTE OF AGREEMENT between the LORD PROVOST MAGISTRATES AND COUNCIL OF THE CITY OF EDINBURGH (hereinafter called "the First Parties") of the first part and ALEXANDER WOOD INGLIS Heir of Entail in Possession of the Estates of Glencorse and Loganbank in the Parish of Glencorse in the County of Midlothian (hereinafter called "the Second Party") of the second part.

WHEREAS the Edinburgh and District Water Trustees (hereinafter called "the Water Trustees") and the Second Party entered into an Agreement dated 25th April 1914 in regard to compensation due to the Second Party in connection with proposals by the

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922. Water Trustees affecting the Second Party's water rights in Glencorse Burn which Agreement was scheduled to the Edinburgh and District Water Order 1914 and confirmed by the Edinburgh and District Water Order Confirmation Act 1914 :

And whereas it was provided by Article Third of said Agreement that the Water Trustees should before exercising the powers with respect to the compensation water authorised by the said Order of 1914 inter alia instal in a suitable house at or near Flotterstone Bridge a pressure turbine to be worked by such portion of the compensation water to be delivered by the Water Trustees to Glencorse Burn through Work No. 16 of the said Order of 1914 as might in the opinion of William Carstairs Reid and George Somervel Carfrae both civil engineers Edinburgh be sufficient to give lighting power at Loganbank House as after-mentioned and should provide a suitable dynamo in connection with the said turbine and lay underground the necessary electric wires from the said dynamo to a point to be arranged outside Loganbank House and connect up with the existing electric installation so as to give the same lighting power as the then existing works were in the opinion of the said William Carstairs Reid and George Somervel Carfrae capable of developing (which whole works above-mentioned are hereinafter referred to as "the said turbine dynamo and electric plant") :

And whereas it is provided by Article Sixth of said Agreement that the Water Trustees should inter alia instal the said turbine dynamo and electric plant at the sight and to the reasonable satisfaction of an engineer to be appointed by the Second Party :

And whereas it is provided by Article Ninth of said Agreement that the Water Trustees should pay to the Second Party the sum of £2,600 sterling which should cover and be in full of all claims for maintenance renewal and running costs supervision and all other charges of inter alia the said turbine dynamo and electric plant and also in full of all claims in respect of loss of amenity all as more fully set forth in the said Agreement :

And whereas by arrangement between the parties it was agreed that the said sum of £2,600 should be paid by the Water Trustees in two sums of £1,300 each at separate dates :

And whereas in pursuance of said Agreement the sum of £1,300 was on 24th March 1916 consigned in bank by the Water Trustees to await investment under authority of the Court of Session :

And whereas by Decree of the Court of Session dated 23rd August 1916 the Second Party was authorised to invest the said sum of £1,300 together with the further sum of £60 also paid by the Water Trustees as therein mentioned in the purchase of $4\frac{1}{2}$ per cent. War Stock 1925-45 to be registered in names of

[13 GEO. 5.] *Edinburgh Corporation Order* [Ch. iv.]
Confirmation Act, 1922. (Session 2.)

Robert Octavius Pitman John Inglis Balfour-Melville and John Cook all Writers to the Signet Edinburgh as Trustees for holding in Trust the said sums for behoof of the Second Party as Heir of Entail foresaid and the succeeding heirs of entail in their order which investment was duly made and accepted by said Trustees conform to Deed of Declaration of Trust by them in favour of the Second Party and the succeeding heirs of entail in the said entailed lands and estates of Glencorse and Loganbank dated 6th 20th and 25th October 1916 and registered in the Books of Council and Session on 12th February 1917 : A.D. 1922.

And whereas the balance of said sum of £2,600 being £1,300 has been consigned in the Bank of Scotland New Town Branch Edinburgh conform to Consignation Receipt dated 29th July 1921 in the joint names of the agents of the Second Party and the First Parties to await investment in the same names and for the same purposes as the first above mentioned sum of £1,300 :

And whereas in terms of the provisions of the Edinburgh Boundaries Extension and Tramways Act 1920 the Trust carried on by the Water Trustees was dissolved and the Undertaking of the Water Trustees was transferred to and vested in the First Parties and all the liabilities obligations contracts and agreements of the Water Trustees were transferred and attached to the First Parties :

And whereas the remaining obligations above specified relating to the installation of the said turbine dynamo and electric plant undertaken by the Water Trustees in the said Agreement have not been implemented and it has been arranged between the First and Second Parties that the said obligations shall be discharged in respect of a payment to the Second Party by the First Parties which payment has in terms of a valuation by William Carstairs Reid and George Somervell Carfrae two valuers respectively appointed by the First and Second Parties hereto and dated 11th and 12th August 1921 been fixed at the sum of £1,450 sterling :

And whereas the First Parties are promoting a Provisional Order in the present Session of Parliament and are asking powers therein to vary the terms of the foresaid Agreement scheduled to the Edinburgh and District Water Order 1914 so as to give effect to the arrangement now come to between the parties hereto as hereinafter expressed :

Therefore the parties have agreed and do hereby agree as follows :—

First The First Parties agree to pay within one month of the date of the confirmation of the Provisional Order after-mentioned to the said Robert Octavius Pitman John Inglis Balfour-Melville and John Cook as Trustees for the purposes and with the powers aftermentioned the said sum of £1,450 and

[Ch. iv.] *Edinburgh Corporation Order* [13 GEO. 5.]
Confirmation Act, 1922. (Session 2.)

A.D. 1922. also to concur with the Second Party in taking any steps that may be necessary in order to have the said sum of £1,300 uplifted from the said bank and paid to the said Robert Octavius Pitman John Inglis Balfour-Melville and John Cook as Trustees for the purposes and with the powers aftermentioned and the said sums of £1,450 and £1,300 shall be held by the said Robert Octavius Pitman John Inglis Balfour-Melville and John Cook as Trustees for holding in trust the said sums of £1,300 and £1,450 for behoof of the Second Party as Heir of Entail in possession of the said entailed lands and estates of Glencorse and Loganbank and the succeeding heirs of entail in their order and for administering the said sums of £1,300 and £1,450 for the purposes and with the powers specified in the Lands Clauses Consolidation (Scotland) Act 1845 and the Entail Acts and the Second Party agrees to accept such payments in full settlement of all the obligations undertaken by the Water Trustees in virtue of Articles Third Sixth and Ninth of the said Agreement to instal the said turbine dynamo and electric plant and make payment of the said sum of £2,600 sterling.

Second The Second Party hereby binds himself and his successors in the said entailed estates in exchange for payment by the First Parties of the said sum of £1,450 in terms of the immediately preceding Article to grant in favour of the First Parties a discharge of all claims competent to him and them to have the said turbine dynamo and electric plant installed in terms of the said Agreement.

Third This Agreement is made subject to the approval of Parliament and the Secretary for Scotland and shall be scheduled to and confirmed by the Provisional Order which the First Parties are promoting as aforesaid and in the event of any alteration being made by Parliament or the Secretary for Scotland thereon which in the opinion of the Dean of the Faculty of Advocates for the time being is material it shall be in the power of either party to withdraw therefrom.

Lastly The parties hereto agree to registration hereof for preservation and execution.

In witness whereof these presents consisting of this and the four preceding pages are subscribed in duplicate by or on behalf of the parties hereto at Edinburgh as follows videlicet By the said Alexander Wood Inglis on the twentieth day of April nineteen hundred and twenty-two before these witnesses David Hunter solicitor sixty-one Castle Street Edinburgh and Freda Wilhelmina Mitchell typist to Messieurs W. and J. Cook writers to the signet Edinburgh and by the Right Honourable Thomas Hutchison lord provost and Andrew Grierson solicitor Supreme Courts town clerk both of Edinburgh in name and by authority of the said lord provost magistrates and remanent members of

[13 GEO. 5.] *Edinburgh Corporation Order* [Ch. iv.]
Confirmation Act, 1922. (Session 2.)

council present in council on the fourth day of May in the year last above mentioned before these witnesses David Ovens Drummond lord provost's secretary City Chambers Edinburgh and Donald Cameron assistant in the Town Clerk's Office Edinburgh. A.D. 1922.

D. O. DRUMMOND Witness.	THOS. HUTCHISON Lord Provost.
DON. CAMERON Witness.	A. GRIERSON Town Clerk.
DAVID HUNTER Witness.	ALEX. W. INGLIS.
FREDA W. MITCHELL Witness.	

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
WILLIAM RICHARD CODLING, Esq., C.V.O., C.B.E., the King's Printer of
Acts of Parliament.

To be purchased through any Bookseller or directly from
H.M. STATIONERY OFFICE at the following addresses:
IMPERIAL HOUSE, KINGSWAY, LONDON, W.C. 2, and 28, ABINGDON STREET, LONDON, S.W. 1;
37, PETER STREET, MANCHESTER; 1, ST. ANDREW'S CRESCENT, CARDIFF;
or 23, FORTH STREET, EDINBURGH.

